		Responding party contends that plaintiff was severely injured at moving defendant's manufacturing facility with he was using a repurposed 20-year-old vertical baler to crush mattress foam in direct contravention of the manufacturer's specifications and without any training, instructions, or warnings. Specifically, it contends that both of the plaintiff's arms were crushed by a 550-pound planer and that he continues to experience severe pain on a daily basis. Responding party contends that plaintiff's special damages for medical care exceed $159,000 and he will probably undergo future surgery. It further contends that plaintiff has incurred damages for both lost earnings and earning capacity and will probably be awarded a multi-million dollar verdict once non-economic damages are included. Responding party disputes that the moving party has no liability under the workers' compensation exclusivity rule because, among other things, it admitted in its response to the set of requests for admissions that it was not plaintiff's employer. It further contends that the moving party bears most of the responsibility for the plaintiff's injuries and that the $1 million policy limit settlement does not accurately reflect its share of liability. Responding party also contends that moving party failed to mention anything about its financial condition and notes that it disclosed in discovery that it had an umbrella policy with a policy limit of $10 million. In light of these arguments and the evidence presented by responding party, it has shown that the settlement between moving party and plaintiff is not "within the ballpark" in relation to the *Tech-Bilt* factors as to be consistent with the equitable objectives of the statute, notwithstanding the settlement figure of $1 million. Moving party has not submitted any declarations or evidence with its reply to rebut the showing by responding defendant; it has simply reiterated its arguments. The motion of defendant, cross-defendant, and cross-complainant Brentwood Home, LLC, for an order determining that the settlement that it entered into with plaintiff Juan Rodriguez Navarro is in good faith for the purposes of Code Civ. Proc. § 877.6 is DENIED.
9	**Madani v. BMW of North America, LLC** 2025-01461171 Motion for Judgment on the Pleadings	Defendant BMW of North America, LLC's Motion for Judgment on the Pleadings is DENIED. The California Supreme Court in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 201 ruled: Thus, the basic framework of the Song-Beverly Act distinguishes between new and used products and 'provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally

		off the hook.' " "For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (*Id.* at p. 202.) "In both cases, the Act's protections are premised on an express warranty arising from the product's sale." (*Ibid.*) The Complaint allegations are sufficient. "These causes of action arise out of the warranty obligations of BMW OF NORTH AMERICA, LLC in connection with a vehicle purchased by Plaintiff and for which BMW OF NORTH AMERICA, LLC issued a written warranty." (Compl., ¶ 4.) "Express warranties accompanied the sale of the VEHICLE to Plaintiff by which MANUFACTURER undertook to preserve or maintain the utility or performance of Plaintiff's VEHICLE or to provide compensation if there was a failure in such utility or performance." (Compl., ¶ 8.) Defendant argues these allegations establish the warranty was either the preexisting warranty or not a new car warranty. The California Supreme Court did not limit the protections of Song-Beverly only to cases where a new product warranty was issued as argued by Defendant. Rodriguez ruled the Song-Beverly Act applies to used products where the manufacturer issued a new warranty. (Rodriguez, supra, 17 Cal.5th 189, 202.) Thus, the allegation that Defendant issued a new warranty is sufficient. Further, Defendant's claim Plaintiff must allege evidentiary facts to support his causes of action is not supported. "A cardinal rule of pleading is that only the ultimate facts need be alleged." (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606.) Thus, Defendant's Motion is denied.
10	**Iwamoto v. Lai** **2021-01193481** Motion for summary Judgment Motion to Expunge Lis Pendens Motion for an order re Undertaking Motion for Reconsideration to continue 1/11/27 trial	Motion 1: Motion for Summary Judgment/Adjudication Motion 2: Motion to Expunge Lis Pendens Motion 3: Motion for an Order Requiring an Undertaking **Motion 1: Motion for Summary Judgment or Summary Adjudication** Defendants' Motion for Summary Judgment or in the alternative Summary Adjudication is CONTINUED to a date to be determined at the 8/3/26 hearing. Defendants Kowen Lai and Tzuchuan Lung as Trustees of the Kowen Lai and Tzuchuan Lung Trust Dated December 8, 2015, move for summary judgment or, in the alternative, summary adjudication of each of the remaining causes of